

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 3, 2026
8:30 a.m./1:30 p.m.

17. JESSICA RUBALCAVA V. ISAIAH RUBALCAVA

24FL0018

Respondent filed a Request for Order (RFO) on June 16, 2026, seeking a waiver of Petitioner's disclosures.

On July 6, 2026, Respondent filed an amended RFO, seeking waiver of Petitioner's Final Declaration of Disclosure (FDD) under Family Code section 2107(b)(3). Petitioner was electronically served on August 4, 2026.

Respondent asserts he served his FDD on Petitioner on August 15, 2025. Despite the matter being set for trial on June 16, 2026, Petitioner has failed to serve her FDD. Respondent states Petitioner failed to appear at that hearing and has not participated in the dissolution proceedings on a regular and considered basis.

Petitioner has not filed a Responsive Declaration, therefore, the court deems the failure to do so as an admission that Respondent's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

Family Code sections 2104 imposes on each party the obligation of making a preliminary disclosures of assets (PDD) within the specified timeframes. For the party responding to a Petition for Dissolution, the disclosure is due either concurrently with the response or within 60 days of filing the same. Where a party fails to comply with Section 2104, the complying party may, among other things, file a motion to compel and seek sanctions against the noncomplying party. Fam. Code § 2107(b)(1). "...[T]he court *shall*...impose monetary sanctions against the noncomplying party. Sanctions shall be in an amount sufficient to deter repetition of the conduct or comparable conduct, and *shall* include reasonable attorney's fees, costs incurred, or both, unless the court finds that the noncomplying party acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Fam. Code § 2107(c).

Here, Respondent has complied with the law and served his FDD; as such he has standing to assert his demand for the same pursuant to Family Code Section 2107. Accordingly, the court finds good cause to waive Petitioner's FDD as she has failed to appear for trial on the dissolution and has not regularly or consistently participated in these proceedings. Respondent's request is granted in full.

All prior orders remain in full force and effect.

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Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #17: THE COURT FINDS GOOD CAUSE TO WAIVE PETITIONER'S FDD AS SHE HAS FAILED TO APPEAR FOR TRIAL ON THE DISSOLUTION AND HAS NOT REGULARLY OR CONSISTENTLY PARTICIPATED IN THESE PROCEEDINGS. RESPONDENT'S REQUEST IS GRANTED IN FULL. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.